

Court No. - 3

Case :- WRIT - C No. - 17346 of 2023

Petitioner :- Mohd Ariz Shamsi

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Sandeep Kumar

Counsel for Respondent :- Mukesh Kumar Singh

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Anish Kumar Gupta,J.

As prayed, put up as a **fresh** case before the appropriate Bench on **31.05.2023**.

Order Date :- 22.5.2023/vkg

Court No. - 40

Case :- WRIT - C No. - 17346 of 2023

Petitioner :- Mohd Ariz Shamsi

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Sandeep Kumar

Counsel for Respondent :- Mukesh Kumar Singh

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Manjive Shukla,J.

On the request of the learned counsel for the petitioner, case is passed over for the day.

Order Date :- 31.5.2023

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Court No. - 40

Case :- WRIT - C No. - 17346 of 2023

Petitioner :- Mohd Ariz Shamsi

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Sandeep Kumar

Counsel for Respondent :- Mukesh Kumar Singh

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard learned counsel for the petitioner and Shri Mukesh Kumar Singh, learned counsel for Electricity Department.

2. Earlier petitioner has invoked writ jurisdiction by preferring Writ C No.17652/2022 (Mohd. Ariz Shamsi and another vs. Uttar Pradesh Power Corporation Limited And 2 Others), which was disposed of by order dated 10.01.2023, with following observations:-

"Heard Sri Sandeep Kumar, learned counsel for the petitioners and Sri Mukesh Kumar Singh, learned counsel for respondent nos. 2 and 3.

Despite order dated 20.12.2022, the respondents have chosen not to file counter affidavit.

This writ petition has been filed praying for a direction to respondent no. 3 to provide electricity connection to the petitioners in accordance with law within stipulated period.

Learned counsel for respondent nos. 2 and 3 states that if the petitioners submit applications completing all formalities within two weeks, then their applications for electricity connection shall be considered by respondent no.3 and appropriate action in accordance with law shall be taken.

In view of the aforesaid, with the consent of learned counsel for the parties and without expressing any opinion on merits of the case of the petitioners, this writ petition is disposed of giving liberty to the petitioner to submit application for electricity connection before the respondent no.3 within three weeks alongwith a certified copy of this order completing all formalities as may be required by the relevant Act/Rules of the U.P. Electricity Supply Code, 2005. In the event such applications are submitted by the petitioners before the respondent no.3 within the stipulated time, the respondent no.3 shall consider the applications of the petitioners and shall pass appropriate order in accordance with law within next three weeks.

The writ petition stands disposed of."

3. Present writ petition is preferred assailing the validity of order dated 27.03.2023 passed by Executive Engineer-respondent no.3 by which the application of petitioner for electricity connection no.1010773788 has been rejected on the ground that petitioner has

not moved fresh application for supply of electricity connection, whereas, his previous applications were alleged to be decided.

4. Considering the facts and circumstances, we deem it appropriate let the petitioner may move a fresh application as per the mandate of Division Bench of this Court dated 10.01.2023 before the Competent Authority. In case any such application is moved by the petitioner within two week's time, the same shall be considered, strictly in accordance with law and as per direction of Division Bench of this Court dated 10.01.2023. Needless to say that in case there is an outstanding dues, the same shall also be cleared at the earliest.

5. With these observations, the writ petition is ***disposed of***.

Order Date :- 14.7.2023

A. Pandey